

Reserved On 17.09.2024 vs State Of H.P on 21 October, 2024

2024:HHC:9987 IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA Cr. Appeal No. 289 of 2010 Reserved on 17.09.2024 Date of Decision: 21.10.2024.

Onkar Singh &Anr.

....Appellants Versus State of H.P.Respondent Coram Hon'ble Mr Justice Rakesh Kainthla, Judge. Whether approved for reporting? Yes For the Appellant/State : Mr. Vinay Thakur, Advocate.

For the
State

Respondent/ :

Mr Lokender Kutlheria, Additional
Advocate General.

Rakesh Kainthla, Judge.

The present appeal is directed against the judgment of conviction and order of sentence dated 07.08.2010 and 10.08.2010, respectively passed by learned Sessions Judge, Kangra at Dharamshala, H.P. (learned Trial Court) vide which the accused were convicted of the commission of an offence punishable under Section 498-A read with Section 34 of IPC and sentenced to undergo simple imprisonment for three years each and pay a fine of 10,000/- each and in default of payment of fine to further Whether reporters of the local papers may be allowed to see the judgment? Yes 2024:HHC:9987 undergo simple imprisonment for six months each. (Parties shall hereinafter be referred to in the same manner as they were arrayed before the learned Trial Court for convenience).

2. Briefly stated, the facts giving rise to the present appeal are that the police presented a Challan before the learned Trial Court against the accused for the commission of offences punishable under Sections 498-A and 306 read with Section 34 of IPC of the Indian Penal Code (IPC). It was asserted that the police received an information on 14.06.2007 at 11:30 a.m. that one woman was brought to the Hospital having attempted suicide by hanging. The information(Ext.PW-10/A) was reduced into writing. ASI Vinod Kumar (PW-10), Constable Ashwani Kumar, Lady Constable Promila and Lady Constable Anjana Devi were sent for the verification of the information. Madan Lal (PW-1) made a statement (Ext.PW-1/A) to the police stating that Anta Devi, deceased, was his daughter. She was married to accused Deepak as per the Hindu Rites and Customs about seven years before the incident. The informant had provided dowry as per his capacity at the time of the marriage of Anta Devi. One son and one daughter were born to Anta Devi. She was kept properly for about one year 2024:HHC:9987 of her marriage. However, after one year accused Onkar Singh, father-in-law and Tripta Devi, mother-in-law of the deceased Anta Devi started harassing her. They also started taunting her. They said that the character of Anta Devi was not good and they had married the dirt of Kangra. Anta Devi was not allowed even to go near the fire during the winters. Anta Devi used to reveal this incident to her parents. Rajinder Kumar (PW-3), Raj Kumari (PW-

2), and Pushpa Devi (PW-6) went to Kanta Devi (PW-8) and narrated the incident to her. Kanta Devi assured to settle the matter. Anta Devi had committed suicide due to the consistent harassment

of the accused. Statement (Ext. PW-1/A) was reduced into writing and was sent to the Police Station where F.I.R.(Ext.PW-9/A) was registered. ASI Vinod Kumar (PW-10) conducted the investigation. He prepared the site plan (PW-10/C). Shiv Kumar (PW-4) took photographs of the dead body of Anta Devi (Ext. PW-4/A-1 to Ext.PW-4/A-2, whose negatives are Ext. PW-4/A-3 to Ext.PW-4/A-4) and handed them over to ASI Vinod Kumar(PW-10). ASI Vinod Kumar found two pieces of one Dupatta (Ex.P-1), lying in the room of the deceased Anta Devi. He seized it vide Memo (Ext.PW-1/B). Anta Devi died at about 3:30-4:00 a.m. 2024:HHC:9987 on the next date. ASI Vinod Kumar (PW-10) prepared the inquest papers (Ext.PW-7/B and Ext.PW-7/C). He filed an application (Ext.PW-10/D) for conducting the post-mortem examination of Anta Devi. Dr Chander Deep Sharma (PW-7) conducted the post- mortem and issued the report (Ext.PW-7/A) stating that Anta Devi died because of asphyxia due to aspiration of blood-stained fluid as a result of ante-mortem hanging. The statements of witnesses were recorded as per their version. After the completion of investigation, challan was prepared and was presented before the Court of learned Judicial Magistrate First Class, Court No.2, Dharamshala, H.P. who committed it for trial to the learned Sessions Judge, Kangra at Dharamshala.

3. The learned Trial Court charged the accused with the commission of offences punishable under Sections 498A and 306 read with Section 34 of IPC, to which the accused pleaded not guilty and claimed to be tried.

4. The prosecution examined ten witnesses to prove its case. Madan Lal (PW-1) is the informant. Raj Kumari (PW-2) is the mother of Anta Devi. Rajinder Kumar (PW-3) and Pushpa Devi (PW-6) are relatives of Anta Devi, who complained about the 2024:HHC:9987 harassment of Anta Devi to Kanta Devi .Dr. Anju Vij (PW-5) initially examined Anta Devi and issued an MLC. Dr Chander Deep Sharma (PW-7), conducted the post-mortem examination of the deceased. Kanta Devi (PW-8) was the Ward Punch. S.I. Gulzari Lal (PW-9) signed the F.I.R. ASI Vinod Kumar (PW-10) investigated the case.

5. The accused in their statements recorded under Section 313 of Cr.P.C. admitted the relationship between them and Anta Devi. They stated that Anta Devi was insisting on residing with her husband. They had a refrigerator, ceiling fan and colour T.V. in their home. They cut the Dupatta with which Anta Devi had hanged herself and took her to the hospital for treatment. They also informed Pradhan about the incident with the request to inform the parents of Anta Devi. The witnesses were relatives of the deceased and they deposed falsely due to their love and affection towards Anta Devi. Anta Devi used to insist that she should be taken to Baddi with her husband. However, the accommodation at Baddi was costly and her husband could not afford such costly accommodation. Therefore, he was unable to take her with him to Baddi. Anta Devi remained upset due to this 2024:HHC:9987 fact. She was short-tempered and used to feel offended frequently without any reason. They never maltreated Anta Devi and never demanded any dowry from her.

6. The learned Trial Court held that the statements of prosecution witnesses were not sufficient to prove that the accused had created such circumstances that the deceased was left with no other option but to commit suicide. However, it was proved beyond reasonable doubt that the accused had demanded dowry from the deceased before her death. Minor contradictions in the statements of

prosecution witnesses were insufficient to discard them. The testimonies of related witnesses cannot be ignored due to the relationship alone. The defence version that Anta Devi wanted to reside with her husband, who could not take her with him was not believable. Hence, the learned Trial Court acquitted the accused of the commission of an offence punishable under Section 306 read with Section 34 of IPC; however, the learned Trial Court convicted the accused of the commission of an offence punishable under Section 498-A read with Section 34 of IPC and sentenced them to undergo simple imprisonment for three years each and pay a fine of 10,000/- each and in default of 2024:HHC:9987 payment of fine to further undergo simple imprisonment for six months.

7. Being aggrieved from the judgment and order passed by the learned Trial Court, the accused have filed a present appeal asserting that the ingredients of Section 498-A of IPC were not satisfied. The deceased had not left any suicide note mentioning harassment. Statements of witnesses were contradictory. The medical evidence did not support the prosecution's version that the deceased was being beaten by the accused persons. The learned Trial Court erred in convicting and sentencing the accused; therefore, it was prayed that the present appeal be allowed and the judgment and order passed by the learned Trial Court be set aside.

8. I have heard Mr. Vinay Thakur, learned counsel for the appellants and Mr. Lokender Kutlehria, learned Additional Advocate General for the respondent/State.

9. Mr. Vinay Thakur, learned counsel for the appellants/accused submitted that the learned Trial Court erred in convicting and sentencing the accused. The prosecution version was not proved beyond a reasonable doubt. There were major 2024:HHC:9987 contradictions in the statements of official witnesses. The medical evidence did not corroborate the version of the prosecution witnesses. Hence, he prayed that the present appeal be allowed and the judgment and order passed by the learned Trial Court be quashed and set aside. He relied upon the judgments of Devinder Singh & Another vs State of H.P, Latest HLJ 2023 (HP)(2) 1389, Vipin Jaiswal vs State of UP 2013 (3) SCC 684, Girdhar Shankar Tawade vs State of Maharashtra 2002(5) SCC 177 and Sushil Kumar Sharma, Vs. Union of India 2005 (6) SCC 281 in support of his submission.

10. Mr Lokender Kutlehria, learned Additional Advocate General for the respondent/State submitted that the testimonies of prosecution witnesses are duly corroborated by the statement of Ward Punch Kanta Devi (PW-8), who admitted that a complaint of harassment was made to her during the lifetime of Anta Devi. This witness consistently deposed about the harassment of the deceased and the demand for dowry. The learned Trial Court had properly appreciated the evidence led before it and no interference is required with the judgment and order passed by learned Trial Court. Hence, he prayed that the present appeal be dismissed.

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11. I have given considerable thought to the submissions made at the bar and have gone through the records carefully.

12. It was laid down by the Hon'ble Supreme Court in Gananath Pattnaik v. State of Orissa, (2002) 2 SCC 619: 2002 SCC (Cri) 461: 2002 SCC OnLine SC 189 that cruelty within the meaning of Section 498A need not be physical but can be mental as well. It was observed at page 622:

"6. We do not agree with the argument of the learned counsel for the appellant that even on proof of the aforesaid circumstances, as noticed by the trial court, no case was made out against the appellant as, according to him, those facts even proved do not constitute cruelty for the purposes of attracting the provisions of Section 498-A of the Penal Code, 1860. Cruelty for the purposes of the aforesaid section has been defined under the Explanation of the section to mean:

"(a) any wilful conduct which is of such a nature as is likely to drive the woman to commit suicide or to cause grave injury or danger to life, limb or health (whether mental or physical) of the woman; or

(b) harassment of the woman where such harassment is with a view to coercing her or any person related to her to meet any unlawful demand for any property or valuable security or is on account of failure by her or any person related to her to meet such demand."

7. The concept of cruelty and its effect varies from individual to individual, also depending upon the social and economic status to which such a person belongs. "Cruelty" for the purposes of constituting the offence under the aforesaid section need not be physical. Even mental torture 2024:HHC:9987 or abnormal behaviour may amount to cruelty and harassment in a given case."

13. The Hon'ble Supreme Court explained the term cruelty in Undavalli Narayana Rao v. State of A.P., (2009) 14 SCC 588: (2010) 1 SCC (Cri) 1466: 2009 SCC OnLine SC 1350 and observed at page 592 as under:

"15. "Cruelty" has been defined by the Explanation added to the section itself. The basic ingredients of Section 498-A IPC are cruelty and harassment. The elements of cruelty so far as clause (a) is concerned, have been classified as follows:

(i) any "wilful" conduct which is of such a nature as is likely to drive the woman to commit suicide; or

(ii) any "wilful" conduct which is likely to cause grave injury to the woman; or

(iii) any "wilful" act which is likely to cause danger to life, limb or health, whether physical or mental of the woman.

For the purpose of clause (b) the essential ingredients are as under:

(i) the harassment of a married woman

(ii) with a view to coercing her or any person related to her to meet the unlawful demand of dowry or for any property or valuable security or on account of her failure or failure of any person related to her to meet such a demand.

Therefore, it is evident that the charge under Section 498-A can be brought home if the essential ingredients either in clause (a) or (b) or both are found duly established.

16. In *S. Hanumantha Rao v. S. Ramani* [(1999) 3 SCC 620: AIR 1999 SC 1318] this Court considered the meaning of cruelty in the context of the provisions 2024:HHC:9987 under Section 13 of the Hindu Marriage Act, 1955 and observed that : (SCC p. 624, para 8) "8. ... Mental cruelty broadly means, when either party causes mental pain, agony or suffering of such a magnitude that it severs the bond between the wife and the husband and as a result of which it becomes impossible for the party who has suffered to live with the other party. In other words, the party who has committed wrong is not expected to live with the other party."

17. In *V. Bhagat v. D. Bhagat* [(1994) 1 SCC 337: AIR 1994 SC 710] this Court, while dealing with the issue of cruelty in the context of Section 13 of the Hindu Marriage Act, observed as under: (SCC pp. 347 & 349, paras 16-17) "16. ... It is not necessary to prove that the mental cruelty is such as to cause injury to the health of the petitioner. While arriving at such a conclusion, regard must be had to the social status, educational level of the parties, the society they move in, the possibility or otherwise of the parties ever living together in case they are already living apart and all other relevant facts and circumstances which it is neither possible nor desirable to set out exhaustively. What is cruelty in one case may not amount to cruelty in another case. It is a matter to be determined in each case having regard to the facts and circumstances of that case. If it is a case of accusations and allegations, regard must also be given to the context in which they were made.

17. ... The context and the set-up in which the word 'cruelty' has been used in the section, seems to us, that intention is not a necessary element in cruelty. That word has to be understood in the ordinary sense of the term in matrimonial affairs. If the intention to harm, harass or hurt could be inferred by the nature of the conduct or brutal act 2024:HHC:9987 complained of, cruelty could be easily established. But the absence of intention should not make any difference in the case if, by ordinary sense in human affairs, the act complained of could otherwise be regarded as cruelty."

18. In *Mohd. Hoshan v. State of A.P.* [(2002) 7 SCC 414: 2002 SCC (Cri) 1765] This Court while dealing with a similar issue held that mental or physical torture should be "continuously" practised by the accused on the wife. The Court further observed as under: (SCC p. 418, para 6) "6. Whether one spouse has been guilty of cruelty to the other is essentially a question of fact. The impact of complaints, accusations or taunts on a person amounting to cruelty depends on various factors like the sensitivity of the individual victim concerned, the social background, the environment, education, etc. Further, mental cruelty varies from person to person depending on the intensity of sensitivity and the degree of courage or endurance to withstand such mental cruelty. In other words, each case has to be decided on its own facts to decide whether the mental cruelty was established or not."

19. In *Raj Rani v. State (Delhi Admn.)* [(2000) 10 SCC 662:

2001 SCC (Cri) 1518: AIR 2000 SC 3559] this Court held that while considering the case of cruelty in the context of the provisions of Section 498-A IPC, the court must examine that allegations/accusations must be of a very grave nature and should be proved beyond reasonable doubt.

20. In *Sushil Kumar Sharma v. Union of India* [(2005) 6 SCC 281: 2005 SCC (Cri) 1473: AIR 2005 SC 3100] this Court explained the distinction of cruelty as provided under Sections 306 and 498-A IPC observing that under Section 498-A cruelty committed by the husband or his relation drive woman to commit suicide, etc. while under Section 306 IPC, suicide is abetted and intended. Therefore, there is 2024:HHC:9987 a basic difference of the intention in the application of the said provisions.

21. In *Girdhar Shankar Tawade v. State of Maharashtra* [(2002) 5 SCC 177: 2002 SCC (Cri) 971: AIR 2002 SC 2078] this Court held that "cruelty" has to be understood as having a specific statutory meaning provided in Section 498-A IPC and there should be a case of continuous state of affairs of torture by one to another.

22. In Explanation (b) there is the absence of physical injury but it includes coercive harassment for demand of dowry, etc. Therefore, the aforesaid provisions deal with the patent and latent acts of the husband or his family members. But both are equally serious in terms of the provisions of the statute. The provisions of Section 498-A IPC were introduced by an amendment to curb the harassment of a woman by her husband and/or his family members, for the demand of dowry, etc. under the garb of the fulfilment of the customary obligations.

14. It was held in *Wasim v. State (NCT of Delhi)*, (2019) 7 SCC 435: (2019) 3 SCC (Cri) 69: 2019 SCC OnLine SC 874 that the accused can be convicted of the commission of an offence punishable under Section 498A of IPC for the demand of dowry and harassment to drive the woman to commit suicide. It was observed at page 439:

"12. Conviction under Section 498-A IPC is for subjecting a woman to cruelty. Cruelty is explained as any wilful conduct which is likely to drive a woman to commit suicide or to cause grave injury or danger to life, limb or health. Harassment of a woman by unlawful demand of dowry also partakes the character of "cruelty". It is clear from a plain reading of Section 498-A that conviction for an offence 2024:HHC:9987 under Section 498-A IPC can be for wilful conduct which is likely to drive a woman to commit suicide OR for dowry demand..."

15. The present case has to be appreciated as per the parameters laid down by the Hon'ble Supreme Court.

16. The learned Trial Court acquitted the accused for the commission of an offence punishable under Section 306 read with Section 34 of IPC by holding that no witness had deposed about the abetment

of the commission of suicide by deceased Anta Devi. No challenge was made to this finding of acquittal and this Court is only concerned with the fact that whether the deceased was being subjected to cruelty during her lifetime.

17. The learned Trial Court held that the informant has deposed about the demand for Refrigerators, ceiling fans and colour television. A similar statement was made by Raj Kumari (PW-2) who stated that a demand for dowry was made from the deceased. Pushpa Devi (PW-6) also corroborated this version. Thus, it was duly proved that the accused had demanded dowry from the deceased before she died in her matrimonial home which amounted to mental cruelty to the deceased.

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18. As per statement (Ext.PW-1/A), the accused used to taunt the deceased. They used to level allegations regarding the character of the deceased and say that they had married the dirt of the Kangra. They did not permit the accused to sit near the fire during the winter. This statement is silent regarding the demand for dowry by the accused. Thus, the prosecution never projected a case that the accused were demanding dowry from the deceased and they were harassing the deceased for not bringing sufficient dowry. It was laid down by this Court in Nirmal Singh v. State of Himachal Pradesh, 1986 SCC OnLine HP 27: 1987 Cri LJ 1644 that where the prosecution tries to introduce a new version during the trial, the Court is required to act with utmost caution. It was observed at page 1647:

"9. Before we advert to the evidence we would like to point out that in case where the prosecution endeavours to introduce at the trial a new version or a version which is materially different from the original, as narrated in the first information report, the Court, as a rule of prudence, is required to act with utmost care and circumspection in scrutinising the evidence and normally it should be reluctant to accept the prosecution evidence at its face value unless a satisfactory and cogent explanation is given for the deviations and improvements made. This rule of prudence was completely ignored by the trial Court in the instant case, though it was fully applicable."

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19. It was held by the Hon'ble Supreme Court in Ram Kumar Pandey v. State of M.P., (1975) 3 SCC 815: 1975 SCC (Cri) 225 that omission to state an important fact in the FIR will affect the probabilities of the prosecution's case. It was observed at page 818:

"9. No doubt, an FIR is a previous statement which can, strictly speaking, be only used to corroborate or contradict the maker of it. But, in this case, it had been made by the father of the murdered boy to whom all the important facts of the occurrence, so far as they were known up to 9-15 p.m. on March 23, 1970, were bound to have been communicated. If his daughters had seen the appellant inflicting a blow on Harbinder Singh, the father would certainly have mentioned it in the FIR We think

that omissions of such important facts, affecting the probabilities of the case, are relevant under Section 11 of the Evidence Act in judging the veracity of the prosecution case."

20. It was held in *State of M.P. v. Dharendra Kumar*, (1997) 1 SCC 93: 1997 SCC (Cri) 54 that when the material facts not mentioned in the FIR are narrated by a witness, the substratum of the prosecution case gets altered and would cause a dent to the edifice on which the prosecution case is built. It was observed at page 96:

"11. It was very emphatically contended by Shri Gambhir that as in the first information report (FIR), there is no mention of the dying declaration, we should discard the 2024:HHC:9987 evidence of PW 1 and PW 2 regarding the dying declaration, because of what has been pointed out out by this Court in *Ram Kumar Pandey v. State of M.P.* [(1975) 3 SCC 815: 1975 SCC (Cri) 225: AIR 1975 SC 1026] We do not, however, agree with Shri Gambhir, for the reason that what was observed in *Ram Kumar* case [(1975) 3 SCC 815: 1975 SCC (Cri) 225: AIR 1975 SC 1026] after noting the broad facts, was that material omission in the FIR would cast doubt on the veracity of the prosecution case, despite the general law being that statements made in the FIR can be used to corroborate or contradict its maker. This view owes its origin to the thinking that if there be a material departure in the prosecution case as unfolded in the FIR, which would be so if material facts not mentioned in the FIR are deposed to by prosecution witnesses in the court, the same would cause a dent to the edifice on which the prosecution case is built, as the substratum of the prosecution case then gets altered. It is apparent that the prosecution cannot project two entirely different versions of a case. This is entirely different from thinking that some omission in the FIR would require disbelieving of the witnesses who depose about the fact not mentioned in the FIR. Evidence of witnesses has to be tested on its own strength or weakness. While doing so, if the fact deposed be a material part of the prosecution case, about which, however, no mention was made in the FIR, the same would be borne in mind while deciding about the credibility of the evidence given by the witness in question." (emphasis supplied)

21. It was held in *Sujit Biswas v. State of Assam*, (2013) 12 SCC 406: (2014) 1 SCC (Cri) 677: 2013 SCC OnLine SC 488 that omission to narrate important facts is significant fact under Section 11 of Indian Evidence Act. It was observed at page 416:

2024:HHC:9987 "24. Undoubtedly, the FIR lodged has disclosed the previous statement of the informant which can only be used to either corroborate or contradict the maker of such statement. However, in the event that the informant is a person who claims to know the facts, and is also closely related to the victim, it is expected that he would have certainly mentioned in the FIR, all such relevant facts. The omission of important facts affecting the probability of the case is a relevant factor under Section 11 of the Evidence Act to judge the veracity of the case of the prosecution.

(Vide Ram Kumar Pandey v. State of M.P. [(1975) 3 SCC 815:

1975 SCC (Cri) 225: AIR 1975 SC 1026])"

22. In the present case, the learned Trial Court failed to appreciate the fact that the prosecution had never come up with the case that the deceased was being harassed for not bringing sufficient dowry. The statement (Ext.PW-1/A) was silent regarding the fact; hence, the prosecution case regarding the demand for a Refrigerator, ceiling fan and colour television was to be seen with utmost care and caution.

23. Kanta Devi (PW-8) stated that the parents of Anta Devi and one lady came to her in the year 2004 and told her that their daughter was being maltreated. She advised them to complain to her in case the maltreatment occurred and she would take action; however, no one turned up thereafter. Anta Devi died in the year 2007. She specifically stated that she had not received any 2024:HHC:9987 complaint that the accused were demanding dowry from Anta Devi. The deceased also never complained to her. The parents of the deceased never told her about the demand for ceiling fan and colour television.

24. The statement of this witness only shows that a complaint was made by the parents of Anta Devi in the year 2004, three years before the death of Anta Devi, that she was being harassed in her matrimonial home. She is quite categorical in saying that no demand for dowry was disclosed to her. Hence, her testimony falsified the prosecution's version that the deceased was being harassed for not bringing sufficient dowry.

25. Kanta Devi (PW-8) categorically stated that she had told Anta Devi's parents to make a complaint to her in case of harassment of Anta Devi. No complaint was ever made after the year 2004. The absence of any complaint after 2004 shows that there was no harassment after the year 2004, otherwise Anta Devi's parents or Anta Devi herself would have made a complaint regarding her harassment. This falsifies the prosecution's version that Anta Devi was being harassed before her death.

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26. Pushpa Devi (PW-6) stated that Anta Devi used to tell her about the quarrels at her home. She advised Anta Devi that minor disputes take place in every household and that she should carry on with her marriage. Anta Devi and her parents visited her home 2-3 months before the death of Anta and complained about the accused person. She took the parents of the girl and Rajinder Kumar (PW-3) to the house of Member of Gram Panchayat. The member told the accused not to treat the girl with cruelty in future. Her statement shows that Anta Devi had only complained about the quarrels in her home. She never stated anything about the demand for dowry or being treated with cruelty. The quarrels were normal as is apparent from the fact that this witness advised Anta Devi to carry on with her marriage as the quarrels were normal in every household. The statement of this witness also does not establish that the deceased was being treated with cruelty.

27. Her statement that the parents of Anta Devi had complained about the cruelty three months before the death of Anta Devi is not acceptable in view of the statement of Ward Panch Kanta Devi (PW-8), who stated that such a complaint was 2024:HHC:9987 made in the year 2004, three years before the death of Anta Devi.. Hence, this statement has to be ignored being contrary to the statement of Ward Panch Kanta Devi (PW-8).

28. Rajinder Kumar (PW-3) stated that the deceased used to meet him after her marriage. Deceased used to complain that the accused were maltreating her. Such a complaint was made once or twice. Deceased had disclosed that the accused were demanding dowry and she did not tell anything else. He accompanied the parents of Anta Devi and Pusha Devi to the house of Kanta Devi (PW-8) who advised the accused persons to mend their behaviour but their behaviour did not change. He was contradicted by his previous statement wherein nothing was mentioned about any demand for dowry; however, this statement was not proved as per the law, and the defence cannot take advantage of this confrontation.

29. This witness has not shown that he had taken any action after knowing about the harassment of Anta Devi. He is the informant's brother-in-law and a close relative. He would not have allowed the harassment of Anta Devi by remaining silent. The fact that he remained silent even after hearing about such a 2024:HHC:9987 complaint shows that he did not believe the complaint to be serious or that no such complaints were made to him.

30. Madan Lal (PW-1) stated that the accused started maltreating the deceased on petty matters. The accused demanded a refrigerator, which he provided. The accused kept Anta Devi well for some time and thereafter they demanded a ceiling fan, which he also provided. The accused demanded a colour television but he could not fulfil this demand. The accused did not allow Anta Devi to sit around the fire and they used to turn her out. They used to say that Anta Devi was of an easy virtue from Kangra. The deceased used to talk about the maltreatment. They had visited the house of Kanta Devi and informed her about the conduct of the accused.

31. The statement of this witness is highly vague. He has deposed about the demand for Refrigerators, ceiling fans and colour television, which was never asserted by him initially in his statement (Ext.PW-1/A). He has not given any particulars of the date and time when such a demand was made. It was laid down by the Hon'ble Supreme Court in Vipin Jaiswal v. State of A.P., (2013) 3 SCC 684: (2013) 2 SCC (Cri) 15: 2013 SCC OnLine SC 225 that vague 2024:HHC:9987 allegations of cruelty, harassment and demand of dowry are insufficient to constitute an offence punishable under Section 498A of IPC. It was observed at page 688:

"11. In any case, to hold an accused guilty of both the offences under Sections 304-B and 498-A IPC, the prosecution is required to prove beyond reasonable doubt that the deceased was subjected to cruelty or harassment by the accused. From the evidence of the prosecution witnesses, and in particular PW 1 and PW 4, we find that they have made general allegations of harassment by the appellant towards the deceased and have not brought into evidence any specific acts of cruelty or harassment by the appellant on the deceased."

32. This position was reiterated in *KailashbenMahendrabhai Patel v. State of Maharashtra, 2024 SCC OnLine SC 2621* wherein it was observed:

10.1 The tendency to make general, vague, and omnibus allegations is noticed by this Court in many decisions.

In *Usha Chakraborty v. State of W.B. 2023 SCC OnLine SC 90*, this court observed that:

"16... the respondent alleged commission of offences under sections 323, 384, 406, 423, 467, 468, 420 and 120B, IPC\ against the appellants. A bare perusal of the said allegation and the ingredients to attract them, as adverted to hereinbefore would reveal that the allegations are vague and they did not carry the essential ingredients to constitute the alleged offences.... The ingredients to attract the alleged offence referred to hereinbefore and the nature of the allegations contained in the application filed by the respondent would 2024:HHC:9987 undoubtedly make it clear that the respondent had failed to make specific allegations against the appellants herein in respect of the aforesaid offences. The factual position thus would reveal that the genesis as also the purpose of criminal proceedings are nothing but the aforesaid incident and further that the dispute involved is essentially of civil nature. The appellants and the respondents have given a cloak of criminal offence in the issue ..."

10.2 Similarly, dealing with allegations lacking in particulars and details, in *Neelu Chopra v. Bharti(2009) 10 SCC 184*, this court observed that:

"7. ...what strikes us is that there are no particulars given as to the date on which the ornaments were handed over, as to the exact number of ornaments or their description and as to the date when the ornaments were asked back and were refused. Even the weight of the ornaments is not mentioned in the complaint and it is a general and vague complaint that the ornaments were sometimes given in the custody of the appellants and they were not returned. What strikes us more is that even in Para 10 of the complaint where the complainant says that she asked for her clothes and ornaments which were given to the accused and they refused to give these back, the date is significantly absent."

33. In the present case, the particulars were not given by Madan Lal (PW1) and no reliance can be placed on the same.

34. Madan Lal (PW1) stated that he went to Kanta Devi after the demands were made and he could not fulfil the demand for colour television, however, he had not told Kanta Devi about any such demand. He has not provided any explanation as to why 2024:HHC:9987 he had not told Kanta Devi about the demand for Television. Thus, the version of this witness that the accused demanded dowry from Anta Devi and harassed her for her inability to meet the demand is not acceptable.

35. Raj Kumari (PW-2) stated that the accused kept Anta Devi well for 5-6 months and thereafter they started harassing her. The accused demanded dowry articles from the deceased. They initially demanded a Refrigerator, which was provided. They also demanded a ceiling fan, which was also provided. Thereafter the accused demanded a colour television but it could not be provided. The accused proclaimed that they had married the dirt of Kangra. A complaint was made to Kanta Devi about the maltreatment who assured that she would take action in case the accused would not improve their behaviour.

36. Her statement also suffers from the same infirmities as the statement of her husband. She claimed that the accused demanded a Refrigerator, and ceiling fan, which were provided but they could not provide the colour television demanded by the accused. This was not the prosecution case in the FIR. She also claimed that she and her husband visited Kanta Devi (PW-7) after 2024:HHC:9987 the demand, however, as per the version of Kanta Devi (PW-8) the factum of demand was not disclosed to her. Hence, it is difficult to rely upon her testimony.

37. The parents of Anta Devi stated that the accused were not allowing Anta Devi to sit near the fire during the winter season and they used to call her the dirt of Kangra. These allegations are general and vague. It was not specified when Anta Devi was disallowed to sit near the fire. No month or year was mentioned. No independent person stated that the accused called Anta Devi the dirt of Kangra. Considering the facts that these witnesses have exaggerated regarding the demand for dowry, it is difficult to rely upon this version regarding not allowing Anta Devi to sit near the fire or calling her dirt of Kangra.

38. There is no other evidence to support the prosecution version. The contemporaneous conduct of the prosecution's witnesses does not corroborate the version of the prosecution. Learned Trial Court did not examine the variation in the prosecution case unfolded during the trial and accepted the statement of witnesses as gospel truth. The statements were not 2024:HHC:9987 acceptable because of the reason given above and the learned Trial Court erred in convicting the accused persons.

39. In view of the above, the present appeal is allowed and the judgment and order passed by the learned Trial Court are ordered to be set aside and the accused are acquitted of the commission of an offence punishable under Section 498-A read with Section 34 of IPC.

40. In view of the provisions of Section 437-A of the Code of Criminal Procedure (Section 481 of Bhartiya Nagarik Suraksha Sanhita, 2023) the appellants are directed to furnish their personal bonds within four weeks in the sum of 25,000/- each with one surety each in the like amount to the satisfaction of the learned Trial Court within four weeks, which shall be effective for six months with stipulation that in the event of Special Leave Petition being filed against this judgment, or on grant of the leave, the appellants on receipt of notice thereof, shall appear before the Hon'ble Supreme Court.

41. A copy of this judgment along with the record of the learned Trial Court be sent back forthwith. Pending applications, if any, also stand disposed of.

2024:HHC:9987 (Rakesh Kainthla) Judge 21st October, 2024 (Ravinder) KARAN DN: C=IN, O=HIGH COURT OF HIMACHAL PRADESH, OU=HIGH COURT OF HIMACHAL PRADESH S H I M L A , P h o n e = e 5 d 6 1 f 6 5 9 9 b e 4 1 0 a f 7 c 5 f 0 b 5 7 3 7 9 e 2 S I N G H 25878f23c9ea27b281046985b3b1fe0b75, PostalCode=171001, S=Himachal Pradesh, SERIALNUMBER=f72cf9165791d55ec9393 75291962dod9od094876bd59591426cob1c GULERIA e651f01f, CN=KARAN SINGH GULERIA Reason: I am the author of this document Location:

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